Submission to the Parliamentary Joint Committee on Intelligence and Security

regarding the

Inquiry into the nature and drivers of radicalisation in Australia

October 2026

Who we are

Digital Rights Watch is a charity founded in 2016 to promote and defend human rights as realised in the digital age. We stand for privacy, democracy, fairness, and freedom. Digital Rights Watch educates, campaigns, and advocates for a digital environment in which rights are respected, and connection and creativity can flourish. More information about our work is on our website: www.digitalrightswatch.org.au.

Acknowledgement of Country

Digital Rights Watch acknowledges the Traditional Owners of Country throughout Australia and their continuing connection to land and community. We acknowledge the Aboriginal and Torres Strait Islander peoples as the true custodians of this land that was never ceded and pay our respects to their cultures, and to elders past and present.

Statement on the use of AI in this submission

Digital Rights Watch confirms that no generative AI was used in the creation of this submission. Any mistakes herein are genuine human errors and any useful policy ideas are the result of genuine human thought and creativity.

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General Position

Digital Rights Watch (DRW) welcomes the opportunity to provide comment to the committee on the nature and drivers of radicalisation in Australia.

We note that the terms of reference are expansive. Our submission does not address all of the terms as we do not carry expertise in radicalisation and extremism. However, we do have expertise in digital platform regulation and the value of encryption, so have focused our submission on these areas.

Encryption is a vital tool for the protection of everyday citizens' data, as well as our security and safety. It is not acceptable for the Australian government, regardless of its position on the laws of mathematics[1], to attempt to weaken Australians' right to use strong encryption to protect ourselves and our data. This position is shared by the United Nations' Human Rights Council's special rapporteur on freedom of opinion and expression. [2]

Similarly, Australians depend on internet platforms for large amounts of their activity - socialising, shopping, healthcare et al. We depend on these platforms to follow good engineering practices, including end-to-end encryption, to keep our personal data secure. We cannot afford to weaken the ability of platforms to implement strong encryption for their users.

We think it is critically important that a human rights approach is used when combating extremism, which means recognising the rights of individuals to private communications, and to associate freely.

We would welcome the opportunity to discuss our position further with the committee, if this is of use to your work.

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1 https://www.newscientist.com/article/2140747-laws-of-mathematics-dont-apply-here-says-australian-pm/

2 https://www.ohchr.org/en/stories/2015/06/human-rights-encryption-and-anonymity-digital-age

Defining extremism

Any response to radicalisation must rest on clear and narrow definitions of "extremism". Broad or vague definitions risk capturing lawful political expression, protest and advocacy, and history shows that minority communities, activists and dissenting voices bear the brunt when they do.[3] A human rights-informed approach would ensure that measures aimed at preventing violence target incitement and violent conduct, not unpopular or confronting ideas.

[3] Ní Aoláin, F. (2020). *Human rights impact of policies and practices aimed at preventing and countering violent extremism*. UN Doc A/HRC/43/46. UN Human Rights Council.

The role of technology and encrypted communications

The Internet is a critical component of modern civil life and it is vital for the health of our democracy and all of us as individuals that everyone is able to participate in the online world. Encryption is a keystone technology that underpins almost every facet of online communications - not just individuals messaging securely with each other, but also the ability of browsers to trust websites, and for systems to trust each other. It is impossible to understate the extent to which the online world depends on strong encryption to protect users and systems from intrusion from bad actors - whether those bad actors are criminals, extremists, corporations, or governments. It is overwhelmingly in the public interest that strong encryption exists, is free of backdoors, and is available to citizens and companies to protect their data.[4]

Most modern encryption systems use open-source code and algorithms as this builds confidence that the code is reliable and secure. There are a relatively small number of encryption algorithms in use but they are used pervasively. This means that any attempt to weaken encryption algorithms will be intolerable to the wider internet community and will simply result in developers moving to known-secure encryption libraries. This also means that it is not possible for backdoors to be introduced into encryption algorithms for use only by governments - once a backdoor is introduced, it is available for anyone to exploit - including criminals and other hostile agents.

[4] https://www.homeaffairs.gov.au/about-us/our-portfolios/national-security/lawful-access-telecommunications/assistance-and-access-limitations-safeguards

The obligations of digital platforms

Australians depend on encryption every day to protect our ability to have private communications with each other. As more of our lives are conducted online, it is vital that we are still able to have those private conversations across a variety of internet platforms, which means those platforms need to use good encryption tools.

While extremists might also use encryption, every person is using encryption. It is not possible to determine whether a person is a bad actor simply by looking at whether their messages are encrypted.

It is also not acceptable for internet platforms to decrypt their users messages and surveil the contents. Internet platforms themselves conduct large amounts of intrusive surveillance of the public, which they use to fuel their advertising models. It is not acceptable to place obligations on digital platforms to surveil users on behalf of the government or any other entity.

Platforms that handle public-viewable user-generated content, like social media platforms, could scan that content. However, this moderation will likely be performed by a digital system, rather than by people - bringing with it the inability to detect nuance, subtlety, sarcasm, or context. We have seen algorithmic moderation systems over-policing already over-policed communities[5]. It is also counter to a platforms' self-interest to remove content that drives user-engagement with the platform, so we must treat efforts in auto-moderation with a level of scepticism.

It is, however, an entirely reasonable expectation to have of a platform that it has a process by which users can report dangerous or extremist content with an expectation that it be removed. We must also note that caution must be exercised in the regulation of this area as we have repeatedly seen platforms censoring perfectly innocent minority communities due to malicious reports[6].

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[5] https://arxiv.org/html/2407.14164v1

[6] https://qnews.com.au/meta-shuts-down-five-inclusive-venue-social-accounts-without-notice/

Many of the people best placed to notice radicalisation are not platforms themselves, but the community managers, moderators and administrators who run online groups, forums and servers using platform tools. These practitioners routinely identify and respond to misogynistic harms within their communities, often well before platforms do, yet receive little in the way of tooling, escalation pathways or support from the platforms that host them[7]. Equipping these front-line operators, rather than surveilling everyone's private communications, is one more effective and rights-respecting way to detect and disrupt pathways to extremism.

Misogyny is one of the most common forms of hate speech in Australia. Misogynistic views are the single biggest risk factor for violent extremism.[8] On average, young men are shown violent or extreme misogynistic material within 23 minutes of setting up a social media account. If they engage with the content, they will receive more until within 3 hours misogyny comprises about 75% of the feed, depending on the platform.[9] Platforms spread extremist content to generate attention, engagement and revenue.[10][11]

Instead of eroding encryption and weakening cybersecurity, the government can tackle radicalisation at source by restricting the algorithmic promotion of misogynistic material. The proposed Digital Duty of Care provides an opportunity to address this problem directly.

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[7] https://digitalrightswatch.org.au/misogyny-in-online-social-spaces/

[8] https://figshare.unimelb.edu.au/articles/report/Misogyny_Online_Radicalisation_and_Youth_Extremism_in_Australia/33250176?file=67531593

[9] https://www.dcu.ie/humanities-and-social-sciences/news/2024/apr/new-research-shows-how-tiktok-and-youtube-shorts-are

[10] https://www.aspi.org.au/report/buying-and-selling-extremism/

[11] https://www.adl.org/resources/article/profiting-hate-platforms-ad-placement-problem